

REPUBLIC OF KENYA
IN THE CHIEF MAGISTRATES COURT AT MILIMANI
MILIMANI COMMERCIAL COURTS
CIVIL CASE NO.7540 OF 2017
JOHN GIKONYO WAMUYU & ABIGAIL ACHIENG OUMA (suing as the
legal representatives of the estate of ALICE WANJIRA MUNGE-PLAINTIFF
VERSUS
KAM TRANSPORTERS SAVINGS AND CREDIT CO-OPERATIVE
SOCIETY LIMITED-----DEFENDANT

JUDGEMENT

The plaintiff filed suit against the defendant through a plaint dated 4th October 2017 seeking general damages under the Fatal Accidents Act and the Law Reform Act, special damages of Kshs.53,405/=, costs of the suit and interest.

The defendants entered an appearance and filed a defence where they denied the allegations contained in the plaint. They urged the court to dismiss the plaintiff's case with costs.

On Evidence

The case proceeded for a hearing on 07/08/2023.

John Gikonyo Wamuyu testified that he is the representative of the Estate of Alice Wanjira Munge who is now deceased. It was his evidence that on 29th May 2015 at around 8:40 p.m. the deceased was a pillion passenger in motorcycle registration number KMDP 174 W along Kangundo Road when the defendant through its driver or employee negligently and carelessly drove motor vehicle registration number KBX 033 Z to be driven recklessly thereby occasioning a fatal accident where Alice Wanjira died on the spot. The witness was called by George Mwaura at around 10:00pm who informed him of the accident and death of the deceased. He proceeded to the mortuary where he identified the body. According to him, the deceased left behind three children named Abigail Achieng Ouma, Alva Gedion, Emmanuel Victor Ouma and Ezra Genius who have suffered due to the deceased person's death. He stated that the deceased died at the age of 36, was in excellent state of health and was

working as a businesswoman and cook at the Christian International Church earning Kshs.15,000/= per month. The plaintiff produced the documents in his list of documents dated 4th October 2017 as exhibits in court.

In cross-examination, the witness stated that the deceased was his sister. He stated that he was not at the scene of the accident at the time of the accident but he visited the scene later and found the deceased lying on the ground. He stated that the deceased person had been removed from the scene at the time when he arrived while the motor vehicle was parked at a petrol station. He admitted that the police abstract indicated that the case was pending investigation. The witness admitted that he had not filed receipts for the death certificate, funeral expenses and letters of administration. He stated that he had produced a letter confirming that the deceased worked at the church.

Florence Ndanu testified that she was a conductor of motor vehicle registration number KBX 033 Z on 29/05/2015. He stated that an accident happened on the said date at around 6:40 pm involving their motor vehicle and motorcycle registration number KMDP 174 W that had a pillion passenger. According to her, the driver of KBX 033 Z was driving on the left side of the road when the rider attempted to overtake the bus from the left-hand side which was the wrong side. The rider realized that there was a stationary vehicle on the roadside and accelerated in an attempt to completely overtake the bus to avoid hitting the stationery motor vehicle but in the process, he hit the ladder on the left-hand side of the bus. As a result of the accident the pillion passenger fell and hit her head on the road and sustained fatal injuries. The witness stated that the rider fled from the scene. Their driver stopped and called the police who visited the scene. He blamed the rider for the accident.

At the close of the hearing, parties filed submissions.

Issues for determination

- a) Liability
- b) Quantum

Determination

On liability

The plaintiff in submissions urged the court to find that the driver of motor vehicle registration number KBX 033 Z was to blame for the accident. The defence on their part blamed the rider of motorcycle registration number KMDP 174 W for the accident. DW1 testified that the said rider was overtaking the motor vehicle on the wrong side of the road thereby causing the accident. I have considered the evidence tendered and the submissions by the parties. It is clear from the evidence before this court that an accident happened on the material day involving motor vehicle registration number KBX 033 Z and motorcycle registration number KMDP 174 W. It is also clear from the evidence that Alice Wanjira Munge who was a pillion passenger on motorcycle registration number KMDP 174 W sustained fatal injuries from the accident. This court notes that the death of the deceased must have occurred due to the negligence of the rider or the driver of the motor vehicle. The court notes that although the defendant blames the rider of motorcycle registration number KMDP 174 W for the accident, they did not bother to enjoin that party to the suit.

In the case of **John Kibicho Thirima v Emmanuel Parsmei Mkoitiko [2017] eKLR** the court, pointing out that the person who pleads liability on the part of another is the one to enjoin the party alleged to be at fault, stated:

"Further, I find the defendant's submissions that the plaintiff should have joined owners of all the motor vehicles involved in the material accident an act of chasing the wind. The plaintiff never claimed that the other vehicles contributed to the occurrence of the material accident. He was clear in his testimony and pleadings. It is the defendant who pleaded that other motor vehicles were responsible for the accident hence the burden of proof lay on the defendant to enjoin those owners and prove how they contributed to the accident.

The Plaintiff was entitled to sue any party of its choice. However, since the defendant was the one who was blaming the driver of KCE 567Z, it was incumbent upon them to enjoin that party to the suit for apportionment of liability. The plaintiff proved their case on balance and thus the defendant was rightly held liable."

In **Joseph Leboo & 2 Others v Director Kenya Forest Services & Another [2013] eKLR**, the court opined as follows:

"I think courts need to be careful before making an order for a person to be joined as a defendant where the application for that joinder is not emanating from the plaintiff. This is so as to avoid thrusting upon the plaintiff a party against whom the plaintiff does not intend to sue, or the plaintiff feels he has no cause of action against, or even if he does, has opted not to pursue the action. It is important, unless there will be great prejudice to an existing party, or a clear lacunae in the proceedings, for courts not to seem to be choosing a defendant for the plaintiff to sue. This is because the choice of whom to sue is that of the plaintiff and there may be cogent reasons as to why a litigant has opted not to sue some other persons. Even, in the absence of any reason, the choice to sue ought to be left to the litigant, and this choice ought not to be disturbed without the presence of compelling reasons. Joining a defendant to the proceedings on an application which is not coming from the plaintiff, may also compel the plaintiff to pursue a cause of action that the plaintiff, for his own reasons, or lack of any, of which there is perfect freedom, the plaintiff has opted not to pursue.

Where there is an application for a person to be joined as defendant, and the plaintiff objects to such joinder, the court should even be more cautious before making an order for such joinder. It ought to be clear that the remedy sought by the plaintiff in the proceedings, actually ought to be directed against the party sought to be enjoined, or that the remedy the plaintiff seeks cannot be granted, or the proceedings cannot be properly conducted without the person sought to be enjoined being a party."

In Pauline Wangare Mburu v Benedict Raymond Kutondo [2005] eKLR
Kimaru J., stated that:

"The defendant did not deem it necessary to issue a third party notice to enjoin the owner of motor vehicle registration number KAH 129 V to this suit. In the circumstances therefore, it would be moot for this court to apportion liability to a person who is not a party to this suit. The defendants shall therefore bear 100% liability".

Guided by the above decisions, the court finds that since the defendant did not enjoin the rider of KMDP 174 W to the proceedings then they shall bear the full liability. The court holds the defendants 100% liable for the accident.

QUANTUM

General damages under the Law Reform Act

Pain and suffering

The plaintiff urged the court to award general damages of Kshs.100,000/= noting that the deceased died on the spot. The plaintiff cited case law in support of the submissions. The defence on their part urged the court to award Kshs.30,000/= The defendant cited the following authority;

Antony Njoroge Ng'ang'a (Legal representative of the Estate of the late Fred Nganga Njoroge aka Fred Ng'ang'a Njoroge) v James Kinyanjui Mwangi & 2 others [2022] eKLR where Kshs. 30,000 was awarded under this head. I have considered the rival submissions. The court also notes that the deceased died instantly and did not therefore go through a lot of pain before her death. After considering the cases cited, the court finds an award of **Kshs.50,000/=** to be sufficient compensation to the plaintiff.

Loss of expectation of life

The plaintiff submitted that the deceased died at the age of 36 and was in good health at the time of her death. She was a mother of four children and had envisioned a bright future for herself and the children. The plaintiff did not propose any figure under this head.

The defendants on their part urged the court to award Kshs. 50,000/= The defendant cited the following authority; **Godana Guyo Halake & Another v Patrick Ndeli Ndoli & Another [2017] eKLR**, where an award of Kshs. 70,000/= was made. Having considered the submissions, the court awards Kshs.50,000/= as prayed.

Damages under the Fatal Accident Act

Loss of dependency

The plaintiff urged the court to award Kshs.2, 880,000/=. The plaintiff urged the court to apply a multiplier of 24, multiplicand of 15,000/= and a dependency ratio of 2/3.

The defendants on their part urged the court not to make any award under this heading on grounds that the plaintiff, who is a brother to the deceased is not a dependant under the provisions of **Section 4 of the Fatal Accidents Act**. The plaintiff cited the following case;

John Mungai Kariuki & another v Kaibei Kangai Ndethiu & 2 others [2020] eKLR where the Court held that;

"The brothers and sisters of the deceased are not dependants for purposes of the statute and language of the statute cannot be read, even by creative interpretation, to expand the list of dependants to include siblings of the deceased. Even in the cases relied on by the appellant, the principle that in African culture children are expected to support their parents is supported by the words of the statute as the deceased parents are named a dependant."

This court finds from the plaint filed that the plaintiff is not named as a dependant. The court further notes that the deceased left behind four children who were aged 20 yrs, 17 years, 15 years and 12 years. The said children depended on the deceased for their provisions.

The plaintiff produced a letter dated 19/06/2015 showing that the deceased was a cook at Christian Church International and was earning Kshs.15,000/= The court finds that the plaintiff was not able to prove that the deceased was also doing business.

Multiplier

The deceased herein died at the age of 36 years old. The court presumes that she could have worked until the retirement age of 55 years. Considering other life exigencies, the court will apply a multiplier of 15 years.

Multiplicand

The plaintiff produced a letter dated 19/06/2015 confirming that the deceased was earning Kshs.15,000/= per month. The court will apply a multiplicand of 15,000/=

Dependency ratio

The court notes that the deceased who was not married was the sole provider of her family. Her children fully depended on her for their daily provisions. The court finds that the plaintiff would have applied 2/3 of her salary to raise her children. The court will therefore apply a dependency ratio of 2/3

TOTAL = $15 \times 15000 \times 12 \times 2/3 = \text{Kshs.1,800,000/=}$

Special damages;

The plaintiff pleaded special damages of Kshs.54,405/= made up of the following:

1. Death certificate Kshs.200/=
2. Police Abstract Kshs.200/=
3. Funeral expenses Kshs.50,000/=
4. Letters of Administration Kshs.3,005/=

In Maritim & Another –v- Anjere (1990-1994) EA 312 at 316 the court held that:-

"It is now trite law that special damages must not only be pleaded but must also be specifically proved and those damages awarded as special damages but which were not pleaded in the plaint must be disallowed."

This court notes that the plaintiff did not produce receipts for items 1,2 and 4. I disallow the same. The plaintiff has pleaded for funeral expenses of Kshs.50,000/= but has produced receipts for Kshs.24,000/= for late delivery of coffin(1,000/=), preservation, embalming and use of KUFH post-mortem (Kshs.11,000/=) and clearance of Kshs.12,000/=. This court notes that although the plaintiff has not produced receipts for the full amount of Kshs.50,000/=. the court finds the amount of Kshs.50,000/= sought to be reasonable. The court is guided by the above decisions;

The Court of Appeal in the case of **Jacob Ayiga Maruja & another v Simeon Obayo [2005] eKLR**, held *inter alia*: -

"We agree and the courts have always recognized that a reasonable award ought to be made in respect of reasonable and legitimate funeral expenses. But when such a large sum is claimed for such expenses then there ought to be proof of what the money was spent on. In this case, we think the Shs.117,325/= awarded by the learned

trial Judge as "funeral expenses and other expenses" were wholly unreasonable in the circumstances and we note that the respondent did not give a complete breakdown of what he spent the money on. We accordingly reduce that figure to Shs.60,000/= which is just above half of the sum claimed. We, however, must not be understood to be laying down any law that in subsequent cases, Shs.60,000/= must be given as the reasonable funeral and other expenses. Those items are and must remain subject to proof in each and every case and the Shs.60,000/= we have awarded herein apply strictly to the circumstances of this case."

This court finds that the pleaded figure of Kshs.50,000/= is reasonable. I award the same.

Conclusion:

The court finds that the plaintiff has proved his case on a balance of probability. The court enters judgment in his favour as follows;

- a) Liability is entered at 100% in favour of the plaintiff as against the defendant
- b) Pain and suffering Kshs. 50,000/=
- c) Loss of expectation of life Kshs. 50,000/=
- d) Loss of dependency Kshs.1,800,000/=
- e) Special damages Kshs 50,000/=
- TOTAL Kshs.1,950,000/=**
- f) The plaintiff is awarded the costs of the suit and interest.

C.K CHEPTOO

PRINCIPAL MAGISTRATE

JUDGEMENT read, signed, and delivered virtually at Nairobi on this day of

NOVEMBER 2023

PRESENT